

AGREEMENT

between

Lower Paxton Township

and the

Police Department of
Lower Paxton Township

January 1, 2023 to December 31, 2026

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ARTICLE 1 PRIOR AGREEMENTS

This agreement shall constitute the governing agreement relating to the terms and conditions of employment for the Police Department of Lower Paxton Township for the duration of this Agreement, which shall be from January 1, 2023 through December 31, 2026. This shall be understood to be applicable to the Police Department of Lower Paxton Township which shall include Sergeants, Corporals, and Police Officers. All other employees above the rank of Sergeant shall be considered management employees of Lower Paxton Township. All prior bargaining agreements between Lower Paxton Township and the Police Department of Lower Paxton Township are hereby revoked.

ARTICLE 2 SALARIES

The schedule identified as Attachment No. 1 shall be implemented as part of this Agreement. Effective January 1st of each of the following years: all employees shall receive a wage increase in 2023 - 2.5%, 2024- 3.5%, 2025- 3.5% and 2026- 3.5%.

Each employee hired on or before December 31, 2022 shall receive a \$6,500.00 cash payment for the contract year of 2023. This one-time cash payment shall not be rolled into base pay for purposes of calculating future wage increases. This cash payment is to be paid with the first pay in January of 2023. Employees receiving the cash payment shall be required to maintain their employment as a Township police officer for a period of 365 days from receipt of the payment. Employees who terminate their employment, or whose employment is terminated for any reason, prior to reaching this period of employment expressly agree that the Township has the ability to deduct a prorated payment received from any final pay owed to the employee. For the purpose of this paragraph only, officers on unpaid military leave shall not be considered as willful termination of employment.

ARTICLE 3 INSURANCE

The Township shall provide, at its expense, insurance coverage to employees as follows:

1. Life Insurance - \$50,000.00 upon hiring and \$100,000.00 after completion of five (5) years of service;
2. Short- and long-term disability insurance benefits shall be equal to a maximum monthly benefit of \$5,000 coverage for both.
3. Health insurance coverage for employees and dependents (until age 26 or any change that is set by Federal law). Employees shall participate in their specific Preferred Provider Option (PPO) with a \$250/single and \$500 /family deductible for health insurance benefits.
4. The Dental Plan and orthodontic care for employees and dependents, or Plan equal to that in place at the time of substitution;
5. Effective January 1, 2020 the Township shall provide for retired employees and eligible spouses, who retire on or after January 1, 2020 the same medical benefits enjoyed by active members of the police department in accordance with the following provisions:
 - a. Coverage shall be available for a period of 120 months following the date of retirement, but in no event shall continue past Medicare eligibility for either employee or spouse.
 - b. The Township shall have no obligation to provide the above medical benefits during any period that the retired employee has comparable coverage, without cost, from another

source available to them. The Township shall have no obligation to provide the above medical benefits to any Medicare eligible retiree or spouse thereof.

- c. In the event the foregoing cost-free coverage is or becomes available from another source, but at some point ceases to be so available, the Township shall reinstate the above medical benefits to the retiree for a period of time not to exceed a total period of coverage from inception to termination of benefits of 120 months of coverage.
 - d. The retiree shall have the obligation and duty of reporting to the Township, in writing, the availability of cost-free medical benefits from another source and the cessation thereof.
 - e. The Township shall be responsible for the first five percent (5%) of any increase in the annual cost of the above medical benefits, and then the Township and the retiree sharing equally any annual increase over five percent (5%).
 - f. Upon termination of medical benefits as provided by the Township, retirees shall be afforded the opportunity to purchase any of the medical benefits at their own expense in accordance with the effective group rates.
6. The Township shall provide a paid prescription program under the terms of which each employee shall pay the first \$35.00 for specialty drugs, \$20.00 for brand name prescription drugs and the first \$5.00 for generic drugs. The deductible for brand name drugs specified by a physician due to medical necessity or a brand name drug when no generic drug is available shall be \$5.00. The employee shall pay the first \$10/\$40/\$75 for mail order prescription drugs.
 7. The Township will provide a vision care program.
 8. The above-referenced dental insurance and vision care programs are to be those in effect at the time of this Agreement. The above-referenced long-term disability insurance and short-term disability insurance are as described in Article III, Paragraph 2 of this Agreement.
 9. Township employees may opt out of the Health Care program for an annual reimbursement of (to be applied on a bi-weekly payroll reimbursement):

Employee only coverage-	\$7,250 (\$278.85/paycheck)
Employee and family-	\$18,200 (\$700/paycheck)
Family to Employee only coverage	\$10,800 (\$415.38/paycheck)
- Employees shall qualify for opt out health care reimbursement if they meet the following criteria:
- a. Opt out option is enacted during the benefits open enrollment period.
 - b. Opt out option cannot change during the calendar year, unless benefits from the provider, outside the Lower Paxton Township Group are lost.
 - c. Proof of the other coverage outside the Lower Paxton Township Group shall be required to implement the reimbursement.
 - d. Reimbursement shall only be provided for health care coverage outside of the Lower Paxton Township Group.
 - e. Lower Paxton township employees must surrender all Lower Paxton Township Health Care Group coverage identification cards at the time that the opt out option is activated.
- 10) Effective upon the execution of this agreement, in the event that the Township receives notice or information indicating that its police health care costs will result in the Affordable Care Act Excise Tax, commonly referred to as the “Cadillac Tax”, being imposed on the Township’s police health care plan, whether directly by the federal government or through such tax being passed on by the insurance

provider, the Township shall have the option of reopening the contract. The purpose of this reopener is to explore plan design changes that Excise Tax is imposed or is kept to a minimum; or if plan design changes cannot be agreed to, there will be discussion on how the tax will be funded.

- a. Any such reopener shall be commenced by the Township giving notice to the Union within thirty (30) days following the Township's receiving notice or information indicating that its health care insurance costs will result in the Affordable Care Act Excise Tax, known as the "Cadillac Tax" being imposed on the Township's healthcare plans for a particular year. Once the contract is reopened by the Township, it is agreed that the Township and the Union shall meet promptly in an attempt to reach an amicable resolution.
- b. In the event no resolution is reached, an interest arbitration hearing shall occur no later than thirty (30) days following the Township's reopener request, which shall be presided over by a tripartite panel selected in accordance with Act 111.
- c. A decision shall be rendered by the Panel within forty-five (45) days following the Township's initial request to reopen the contract.

ARTICLE 4 SICK LEAVE

Employees shall receive two hundred forty (240) hours sick leave per calendar year. There shall be no compounding of this benefit during a calendar year based upon multiple occurrences.

Work related illness or injury - The employee shall be paid according to the prevailing law.

Certification - a doctor's certificate shall be required by the Employer for an absence of more than three consecutively scheduled days. A doctor's certificate may be required for an absence of less than three days if absences are frequent or a pattern of absences exists. Said certificate should indicate the dates the employee has been under the care of a physician, the date the employee is able to return to his/her job duties, and restrictions, if any. If a question arises regarding the employee's fitness for duty, the Employer, at its expense, may require the employee be examined by a physician of its choosing.

Sick leave hours shall be used for the illness of the employee only, with the exception that not more than forty-eight (48) sick leave hours per calendar year may be utilized by the employee when illness of his/her spouse, minor children, or parents who reside in the same household require by necessity that the employee render care.

All employees hired on or after January 1, 1990 shall accumulate sick leave to a maximum of one thousand four hundred forty (1440) hours, provided that only the first one hundred twenty (120) hours of each year's sick leave shall be available for accumulation. Upon retirement, all accumulated sick leave up to nine hundred sixty (960) hours shall be paid at fifty percent (50%) of the employee's normal rate of pay. All accumulated sick leave up to four hundred eighty (480) hours above the aforementioned nine hundred sixty (960) hours shall be excluded from any payment. For purposes of this article, an officer's death while in the service of the Township shall not constitute retirement for purposes of payment of accumulated sick leave.

ARTICLE 5 BEREAVEMENT LEAVE

Absence from duty because of death in the immediate family or of a near relative shall be granted in accordance with the following provisions:

1. Whenever an employee shall be absent from duty because of a death in the immediate family of said employee, there shall be no deduction in salary of said employee for an absence not in excess of four days in conjunction with (immediately following) the death and/or funeral. The employer may extend the period of absence, with pay at its discretion as the exigencies of the case may warrant. Members of the immediate family shall be defined as father, mother, brother, sister, son, daughter, husband, wife or any person with whom the employee has made his/her home.
2. When an employee is absent because of the death of a parent-in-law, grandchild, grandparent, or a near relative or step-relative, there shall be no deduction in the salary of said employee for an absence not in excess of two (2) days in conjunction with the death and/or funeral. Near relative (of the employee) shall include first cousin, aunt, uncle, niece, nephew, son-in-law, daughter-in-law, brother-in-law and sister-in-law. The employer may extend the period of absence, with pay, at its discretion as exigencies of the case may warrant.
3. Whenever an employee is absent because of the death of a near relative, there shall be no deduction in the salary of said employee for absence on the day of the funeral. The employer may extend the period of absence, with pay, at its discretion as the exigencies of the case may warrant. A near relative shall be defined as first cousin, aunt, uncle, niece, nephew, grandparent, brother-in-law, sister-in-law, son-in law, and daughter-in-law.

ARTICLE 6 VACATION

Vacations for all employees shall be as follows:

LENGTH OF CONTINUOUS SERVICE	VACATION
Upon one (1) year anniversary through and including three (3) year anniversary	80 hours
Upon fourth (4) year anniversary through and including ninth (9) year anniversary	120 hours
Upon tenth (10) year anniversary through and including the seventeenth (17) year anniversary	160 hours
Upon eighteenth (18) year anniversary through and including twenty first (21) year anniversary	176 hours
Upon twenty-second (22) year anniversary	184 hours
Upon twenty-third (23) year anniversary	192 hours
Upon twenty-fourth (24) year anniversary and after	200 hours

Vacation hours shall be credited to the employee's account in a given year based on his years of service as of his anniversary date that year.

Vacation time may be accumulated with no maximum limit. However, each employee shall be required to take at least 75% of their annual vacation time each year. All unused vacation, not eligible for accumulation by an employee at the end on the anniversary year, shall be assigned for use by the Director of Public Safety or his designee within ninety (90) days of the completion of the employee's anniversary year. Upon separation from employment an employee shall be paid for all accumulated, but unused, vacation leave at the time of separation, except in the case of termination for just cause. No other cash payment shall be provided in lieu of using vacation time.

A vacation schedule shall be posted and maintained current with approved employee vacation leaves. Any vacations scheduled in the time periods of January 1 through May 31, and October 1 through November 30 shall be evaluated based upon availability of leave, and, if available, shall be approved for the employee who first requests vacation. Any vacations scheduled in the time periods of June 1 through September 30 and during the month of December shall be evaluated based upon availability of leave, and shall, if available, be approved for

employees based upon seniority. All vacation requests for the seniority-based periods must be submitted prior to the start of the period. The scheduling of vacation shall comply with the terms and conditions of Article 19 of this Agreement.

Priority Leave is designed to be a protection for the employee to guarantee leave time for important events in the life of the employee and his/her family. It can be used for any event that the employee deems important. Employees shall be entitled to schedule one Priority Leave per calendar year. Once it is used, regardless of its length, the employee is not entitled to its use for the remainder of the year.

Priority Leave cannot be denied due to minimum manpower requirements. The leave may be a combination of vacation hours, holiday hours, and personal hours (as defined within Article 7) that the employee has accrued and on account and may be from one (1) to sixteen (16) days. Priority Leave cannot be transferred to another employee nor can it be carried over into the following year if unused.

The scheduling of Priority Leave shall comply with the terms and conditions of Article 19 of this Agreement. Priority Leave requests must be so designated. Failure to comply with the time limitations for scheduling Priority Leave may be used as grounds for denial of the request. Additionally, Priority Leave may be suspended during declared emergencies and during the week preceding and the week after Christmas Day.

ARTICLE 7 HOLIDAYS AND PERSONAL LEAVE

Each employee shall be entitled to eighty holiday hours. The Township observes the following as paid holidays:

1. New Year's Day
2. Martin Luther King, Jr. Day
3. Presidents' Day
4. Memorial Day - Last Monday in May
5. Independence Day - July 4th
6. Labor Day - First Monday in September
7. Veterans' Day - November 11th
8. Thanksgiving Day
9. Day after Thanksgiving
10. Christmas Day

If a holiday is observed while an employee is on sick leave, vacation leave, or other paid leave status, he shall receive his holiday pay and the day will not be charged against sick, vacation or other leave credits. Compensation for paid holidays shall be supplied during the pay period within which the holiday occurs.

If any employee should work on any of the scheduled holidays of the article, they shall be paid at their overtime rate, which would be one and one-half (1 1/2) times their base rate. In addition, the employee shall receive an additional day off. Such day off shall be used within one hundred twenty (120) days after the holiday is earned. The scheduling of days off credited to an employee for working a holiday shall comply with the terms and conditions of Article 19 of this Agreement.

In addition to the above holidays, each employee shall be entitled to forty (40) personal hours each year. The scheduling of personal hours shall comply with the terms and conditions of Article 19 of this Agreement.

ARTICLE 8 CALL OUT

The following definitions shall apply for purposes of call-out:

1. A shift will be classified as a normally scheduled eight (8) or twelve (12) consecutive hour work period.
2. A Division includes the two major areas of police operations – Administrative Division, and Operations Division.
3. A Platoon is a work group within a division that normally work shifts at the same time. However, in some cases it may be a work group where members work at different times.

When calling personnel out to meet minimum manpower or other overtime needs as determined by the Township for a full shift of work the steps listed below shall apply. These steps shall continue as long as employees do not accept work for whatever reason or cannot be contacted.

1. The call-out of personnel shall be made in accordance with the following paragraphs, except that:
 - a. In the event a manpower need exists at Corporal, in the capacity of shift supervisor, the Patrol Officer First Class (hereafter referred to as PFC) shall assume the duties as the shift supervisor. If the Platoon Corporal/PFC is previously scheduled off and there is still an opening at shift supervisor, a call to work shall then be placed to the Platoon Corporal or Platoon PFC, if one exists, that is on any type of leave, other than medical or bereavement. In the event that there is still no shift supervisor, a Corporal shall be called out to cover the shift supervision responsibilities, if no Corporal is available, a PFC can be called in to act as the shift supervisor, if no PFC is available, a Sergeant can be called in.
 - b. In the event a manpower need exists in an activity requiring a specific skill or training, only employees possessing the skill or training shall be called to work.
 - c. When calling out a Police Officer to investigate a crime, the Operations Division Commander or his designee shall determine the Police Officer to be assigned the case.
2. Should the Township have less than two (2) hours' notice of a situation requiring the call-out of personnel, the provisions of paragraph 6 may be applied first, at the discretion of the responsible party.
3. Police Officers assigned to the Platoon in which a manpower need exists that are on any type of leave, other than medical or bereavement leave, shall be called to work based upon seniority. If no Police Officer is available to work after an attempt is made to contact all those eligible within a Platoon, a call to work shall then be placed to the Platoon Corporal or Platoon PFC if one exists, that is on any type of leave, other than medical or bereavement.
4. Police Officers assigned to the Patrol Section and Special Projects Section in which a manpower need exists, that are on any type of leave, other than medical or bereavement leave, shall be called to work based upon seniority. If no Police Officers are available to work after an attempt is made to contact all those eligible within the Patrol and Special Projects Sections, a call to work shall then be placed to a Patrol/Special Operations Corporal and a Patrol/Special Projects PFC based upon seniority, if one exists, that is on any type of leave, other than medical or bereavement. If no Corporals or PFCS are available to work after an attempt is made to contact all those eligible within the Patrol and Special Projects Sections, a call to work shall then be placed to a Patrol/Special Projects Sergeant based upon seniority, if one exists, that is on any type of leave, other than medical or bereavement.
5. When all contacts for call-out from within the Patrol and Special Operations Sections are made, calls to work to employees shall be made in accordance with the following:

- a. For the Patrol and Special Projects Sections, Police Officers assigned to other Sections shall be called to work based upon seniority.
 - b. For the Criminal Investigation Section, no calls to work shall be made outside the Section, unless approved by the responsible Section Sergeant, Operations Lieutenant or Public Safety Director. When a call-out is approved as herein specified, Police Officers assigned to the Patrol Section and Criminal Investigation Section shall be called to work based upon seniority.
6. When all contacts have been made in accordance with paragraphs 3, 4, and 5, an eight (8) hour shift may be divided into two four-hour periods. Police Officers from the working Platoon shall be permitted to work four additional hours at the end of the next shift. If no Police Officers are available to work the split shift, then the split shift shall be offered to a Platoon Corporal, PFC or section Sergeant, if one exists. Such overtime shall be assigned based upon seniority.
7. If an overtime need has not been filled in accordance with the above paragraphs, the Township may order police employees, based upon reverse seniority, to stay over and come in early to work a split shift. When calling personnel out to meet overtime needs as determined by the Township for four (4) hours or less of any shift of work (e.g. prisoner transport, parades, crowd control) only the provisions of paragraph 6, as identified above shall apply.

The minimum manpower requirements of the Department, as established and amended by Township managerial prerogative, shall be adhered to in the application of the call-out procedure detailed above.

An employee who is called to work for any reason outside normal shift hours shall be guaranteed a minimum of two (2) hours compensation paid at the rate of one and one-half (1 1/2) times the normal hourly rate of that employee.

ARTICLE 9 OVERTIME

An employee who works overtime in any workday shall be entitled to one and one-half (1 1/2) times the normal rate of pay computed on an hourly basis. Longevity supplements shall be included in the employee's base hourly rate for the purpose of computing the employee's overtime rate.

If an employee works three quarters (3/4) of an hour beyond the normal workday, he will qualify for one and one-half (1 1/2) his normal rate of pay for three (3) increments of fifteen (15) minutes. If he works for one (1) hour, he qualifies for overtime for one (1) hour's work. If he works one and one-quarter (1 1/4) hours beyond the normal workday, he will qualify for two (2) hours of overtime. In addition to the foregoing, overtime shall include the following:

1. Services rendered to the Township while on vacation
2. Work performed on a holiday

At the employee's choosing, compensatory time, in lieu of overtime, shall be granted for authorized time worked over the scheduled workday or work week. Comp time shall be granted at the rate of one and one-half (1 1/2) hours off for each overtime hour worked. The scheduling of comp time shall comply with the terms and conditions of Article 19 of this Agreement.

Compensatory time may be accrued to a maximum of forty (40) hours during a calendar year, and no more than forty (40) compensatory hours of leave may be taken within a calendar year. Accrued comp time shall be utilized

during the calendar year in which it is earned. At the end of said calendar year compensation shall be provided for all comp time in accordance with the provisions for overtime.

ARTICLE 10 UNIFORMS & CLOTHING

1. The Township shall be responsible for contracting for dry cleaning of uniforms. In the event the Township would implement a new self-washable uniform, the bargaining unit agrees to waive and suspend the dry-cleaning contract benefit. In the event the Township reverts to the 2019 uniform design, the Township would resume a weekly dry-cleaning contract through a vendor chosen by the Public Safety Director or his designee.
2. Each employee assigned to the Criminal Investigation Division, and required to wear plain clothes, will be eligible to receive a total of \$1,300.00 per year for the purchase and maintenance of clothes for use as a plain clothes police employee. The Township shall make a \$1,000.00 payment to eligible officers as part of the second payroll of the calendar year. The additional \$300.00 will be allocated through a vendor approved by the Public Safety Director or his designee for the dry cleaning of the CI clothing.
3. Any uniform which shows sign of wear or is damaged and is not in good condition or any plain clothes damaged while performing police duties shall be, upon inspection and authorization by the Public Safety Director or his designee, immediately replaced by the Township at the Township's expense. For the purpose of this paragraph, the uniform shall not be deemed to include footwear.
4. Each employee will receive reimbursement up to \$ 250.00 each year. This reimbursement will be for the purchase of footwear and other uniform accessories through an approved vendor selected by the Public Safety Director or his designee. Employees will provide receipts for the purchases to receive their reimbursement.
5. The Township will provide employees with body armor and replace same in accordance with the manufacturer's specifications. Such body armor shall possess a '2' level of protection. Employees that desire a level of protection greater than that provided by the Township shall be permitted to purchase same in lieu of the standard issue body armor. In instances where employees purchase body armor the Township shall, upon presentation of a valid sales receipt, reimburse in an amount equal to the cost of the standard issue body armor.

ARTICLE 11 ADDITIONAL COMPENSATION AND REIMBURSEMENT

1. All court times and hearings during non-duty time shall be paid at the overtime rate in accordance with the following numbers 1 and 2. Any portion of an hour shall count as an hour. All witness or subpoena fees or monies received for appearance at such court or hearing shall be reported to the Township in accordance with work rules to be established by the Police Department.

Two (2) hours minimum for magisterial hearings.

Two (2) hours minimum for County Court.

Notwithstanding the above, if a County or Magisterial court hearing is scheduled immediately prior to the start of the Officer's regularly scheduled shift (i.e. 1130 for a noon start) the Officer shall be paid overtime only for the period for the hearing to the start of their regularly scheduled start of the shift.

2. Additional compensation shall be provided for court time and hearings canceled after 1600 hours on the day before the hearing. Such additional compensation shall equal two (2) hours at the straight time rate. No additional compensation shall be provided for scheduled hearing or court time that is canceled before 1600 hours on the day before the hearing.
3. When an employee performs the duties of a higher rank, the employee shall be compensated at the higher salary for the period of time involved. Example: A PFC working in place of a Corporal.
4. PFCs will be provided a stipend of \$750.00 per year. This stipend will be provided in full in December of each year. PFC's who have been of rank for less than one (1) year at the time stipends are provided will be provided the payment at a prorated rate, based on the number of months served at the rank of PFC.
5. When an employee is authorized, by the Director of Public Safety or his designee, to use his/her own personal vehicle for a police function, he shall be reimbursed at the applicable I.R.S. standard mileage rate. A minimum of twenty (20) miles will be required prior to the submission of and payment for use of a personal vehicle. Authorization for the use of a personal vehicle for an official police function shall only be given when a departmental vehicle or departmental transportation is not available. The computation of mileage driven in a personal vehicle for an official police function shall begin and end at the Township municipal building.
6. Employees shall receive their regular rate of pay while attending any school, which they are required to attend by the Department. The Township shall pay the cost of books, tuition and fees for any such academic training. If a school is held at such a place which requires the employee to stay overnight or which does not allow an employee to take his meal at his permanent residence, the Township shall pay for all such fees and costs, including lodging, mileage and meals. Where meals are not provided, Officers shall be paid a twelve-dollar (\$12.00) meal allowance for any training location beyond a twenty (20) mile radius of the Municipal Center.
7. All employees shall be enrolled as members of the Harrisburg Hunters and Anglers Association and the Township shall pay their annual dues. In addition, all employees shall fire their weapons at least two times a year, sixty rounds per time. The Township shall provide each employee with sixty rounds of practice ammunition per month provided that each employee returns sixty used casings to the Department prior to being issued sixty new rounds of practice ammunition each month.
8. When an employee must travel outside the Township which requires an overnight stay or which does not allow the employee to take his meal at his permanent residence, the Township shall pay for all such fees and costs, including lodging, mileage and meals. Meals shall be paid at a flat rate of twelve dollars (\$12.00) per meal. The purpose of this paragraph is not meant to provide a meal allowance by the Township for a short trip outside the Township.
9. When an employee working an eight (8) hour shift is required to work in excess of twelve (12) straight hours, a meal allowance as provided in Section (5.) above, in the amount of \$12.00, shall be allowed. When an employee working a twelve (12) hour shift is required to work in excess of sixteen straight hours, a meal allowance as provided in Section (5) above, in the amount of \$12.00 shall be allowed.
10. The Township shall provide a \$250 payment to a primary Field Training Officer upon completion of an assignment to provide one-on-one training to a newly hired Police Officer. Such compensation shall be in consideration of the supervisory duties performed during the Field Training assignment. The payment to an FTO shall be prorated based on the number of actual weeks that field training services are provided, in the event that a newly hired officer does not complete the program.

ARTICLE 12 PENSIONS

The present pension plan shall continue in full force and effect. Should there be any conflict between the existing pension plan and State law, it is understood that State law shall prevail. Act 51 of 2009 provides “Killed in Service” insurance coverage at the State level and therefore said coverage shall be deleted from the current Police pension plan. If the Commonwealth repeals Act 51, the Township will re-institute “Killed in Service” coverage.

The police shall appoint three (3) employees to a joint Police-Township Pension Board to assist in monitoring pension fund investments, and to study alternative pension plan benefits.

Effective January 1, 1981, any employee after having completed twelve (12) years of service with the Township shall be vested in the Police Pension Fund.

Effective January 1, 1982, the eligibility requirement for normal retirement will be twenty-five (25) years of service and age fifty (50) years.

Effective January 1, 1987, the present police pension fund shall be changed to eliminate the seventy-five (75%) percent social security offset and to calculate the pension based upon the employee’s last thirty-six (36) months of service.

Effective January 1, 1987, the pension fund shall be changed to add service increments of \$20.00 per month for each year of service beyond twenty-five (25) years not to exceed \$100.00 per month or \$1,200.00 per year.

Effective January 1, 1993, the pension plan shall be amended to provide for survivors benefits in the event that a member of the police department who is retired or eligible to retire dies, the member’s widow shall, during her lifetime, receive a pension calculated at the rate of fifty per centum (50%) of the pension the member was receiving or would have been receiving had he been retired at the time of his death. In the case of a member who dies and has not retired and has not reached the necessary age and/or years of service, his widow shall receive the stated pension benefit beginning on the date that her spouse would have attained the age and service requirements.

Effective January 1, 1993, the pension plan shall be amended to provide for a two percent (2%) maximum Cost of Living Adjustment (COLA) as provided for within PA Act 600 of 1956. Such COLA shall not exceed the percentage increase in the consumer price index from the year in which the employee last worked. The COLA shall only be provided to employees that retire from the Township after January 1, 1993, who have attained the age and service requirements necessary for normal retirement. The COLA shall not be provided to employees who have retired prior to January 1, 1993, or who, for whatever reason, terminate employment with a vested pension benefit prior to their normal retirement date.

In accordance with Section 457 of the Internal Revenue Code the Township shall establish and maintain a municipal employee deferred compensation plan. The following provisions of the plan shall apply when in compliance with Section 457:

- a. The deferred compensation plan shall be the property of the Township and the Township shall be responsible for selecting a professional administrator for investment of plan funds. In addition, the administrative responsibilities shall include payroll deductions, pooled investment of funds, and professional investment counseling for fund assets.
- b. Employee contributions to the deferred compensation plan shall not be included in the gross wages for federal income tax purposes in the year that income is earned and saved. Contributions are taxed by the federal government at the time an employee draws down funds from his account during retirement.

- c. Should an employee terminate employment with the Township prior to retirement, his deferred compensation plan contributions shall either be distributed from his account in lump sum or deferred until retirement.

ARTICLE 13 LONGEVITY

Effective January 1, 1990, longevity payments will be based on one-half percent (1/2%) of base salary per year of service, beginning after five (5) years of service, up to a maximum total payment of ten percent (10%) of base salary. The calculations of longevity pay shall be based on the anniversary date of each employee. An employee's annual longevity payment will be made in the pay period immediately following his/her anniversary date.

ARTICLE 14 SHIFT DIFFERENTIAL

Effective January 1, 2020 the shift differential shall be paid at a rate of one dollar (\$1.00) per hour for each hour, or portion thereof, worked by an employee between 6:00 PM and 6:00 AM.

The term shift shall mean the daily period that an employee is scheduled to work in accordance with the posted schedule. All time worked during a shift shall receive shift differential according to the aforementioned rate scale. All time worked that is outside of the scheduled shift shall receive shift differential computed independently from said scheduled shift in accordance with the aforementioned rate scale.

ARTICLE 15 CHECK OFF

Upon voluntary authorization of a member, the Township is to deduct the current bargaining unit assessment from compensation received. The assessment shall be deducted at the rate specified in the Bargaining Unit By-Laws from such member's paycheck from each pay and shall be forwarded by the Township to the appropriate representative of the bargaining unit. The bargaining unit shall indemnify and hold the Township harmless against any and all claims, suits, orders and judgments brought or issued against the Township as a result of the action taken or not taken by the Township under the provisions of this Article.

ARTICLE 16 LEGAL COUNSEL AND JUDGMENTS

The Township shall provide legal counsel of its choice and at its expense to defend an employee charged under a civil action relating to an occurrence while the employee was on duty or during the course and scope of his employment with the Lower Paxton Township Police Department. Any judgment or damage award against an employee arising out of actions while on duty and within the scope of his employment shall be paid by the Township at no cost to the employee.

ARTICLE 17 TERMINATION OF SERVICE

Upon separation, an employee shall be paid at the time of separation for any and all accrued and accumulated holidays, vacation time, and longevity for the year in which separation occurs, except in the case of involuntary termination for just cause. Vacation shall be deemed to accrue on the basis of one-twelfth (1/12) of the employee's annual vacation for each completed month in the year in which his termination occurs. Likewise, longevity shall accrue in the same manner. For the purpose of this Article, a year shall commence on the employee's anniversary date.

ARTICLE 18

GRIEVANCE PROCEDURE AND ARBITRATION

A grievance is an allegation or complaint that there has been a violation, misinterpretation, or improper application of any term or condition of this Agreement, discipline without just cause, or any complaint, alleging improper, arbitrary or discriminatory enforcement or application by the Township of the rules, regulations, practices, and/or procedures of the Township relating to the wages, hours, terms and conditions of employment covered by this Agreement.

Step 1: A police employee or the Police Association (Association) shall present a grievance orally and informally within thirty (30) calendar days from the occurrence giving rise thereto. The grievance shall be presented to the Division Commander who shall act on it within ten (10) calendar days.

Step 2: In the event that there is no informal resolution of the grievance at Step 1, the grievant or the Association shall submit the grievance in writing to the Public Safety Director no later than twenty-one (21) calendar days after the decision of the Division Commander. The Public Safety Director shall have five (5) calendar days following receipt of such written grievance to submit a written response to the grievant.

Step 3: In the event that there is no resolution of the grievance at Step 2, the grievant or the Association shall submit the grievance in writing to the Township Manager no later than twenty-one (21) calendar days after the decision of the Public Safety Director. The Manager shall have ten (10) calendar days following receipt of such written grievance to submit a written response to the grievant.

Step 4: In the event that the grievance is not suitably resolved at Step 3, the grievant or the Association shall submit the grievance in writing to the Township Supervisors within five (5) calendar days of the receipt of the Township Manager's decision. The Supervisors shall conduct a hearing on the grievance within twenty-eight (28) calendar days following receipt of the grievance from Step 3. Upon conclusion of the hearing the Board of Supervisors shall render a written decision on the grievance within seven (7) calendar days.

Step 5: If the grievance is not suitably resolved in Step 4, the Association, within twenty (20) calendar days of the receipt of the written response in Step 4, shall notify the Township Supervisors of its intent to submit the grievance to binding arbitration. The parties shall have the right mutually to agree upon the arbitrator, but in the event they cannot so agree within fifteen (15) calendar days of the receipt of the above notice, the matter shall forthwith be submitted to the American Arbitration Association which shall submit a list of arbitrators to the parties for the selection of an impartial arbitrator. If the parties make no mutually acceptable selection within five (5) calendar days after receipt of the list, the American Arbitration Association shall appoint an arbitrator in accordance with its rules then obtaining. The arbitration proceedings shall be held at such time and place as is convenient to the parties, consistent with the circumstances of the case.

The decision of the arbitrator shall be final and binding upon the parties, but he shall have no authority to add to, subtract from, or modify this agreement. Arbitration proceedings shall be conducted in accordance with the rules of the American Arbitration Association then obtaining.

The arbitrator's fees and expenses shall be shared equally by the Township and the Association. The Association shall bear its own costs of presenting its case to the arbitrator.

Time limits specified in connection with the aforesaid grievance procedure shall be considered of the essence, provided, however, that such time limits may be extended by written or oral mutual agreement of the parties for any reason.

ARTICLE 19 SCHEDULING

An official Monthly Schedule shall be maintained by the Township and a Daily Schedule shall be posted in the Troop Room on or before the 20th day of the month preceding the scheduled month. These schedules shall contain days of work, shift assignments, regularly scheduled days off, and any approved leave time. In addition, the official schedules shall include, if known to the Township, training classes, firearms and CPR qualification dates, court dates, and other items affecting the typical work schedule of employees. All employees shall be provided with a minimum of one (1) weekend scheduled off-duty in every twenty-one (21) day period commencing with the date of this Agreement.

For the purpose of scheduling, all leaves, other than medical and bereavement leave, are to be scheduled in accordance with this Article. This shall include Vacation leave, Personal Time leave, Holiday leave and Compensatory Time leave. Employees should submit requests for priority leave, vacation, personal hours, comp time, and hours credited for working holidays, to the Township on or before the 10th day of the month for consideration and inclusion on the official Monthly and Daily Schedules of the next month. Any leave request for continuous dates spanning consecutive months, submitted before the 10th day of the month preceding the earliest dates of the request, shall be acted upon as a single request and approved or disapproved in its entirety at the appropriate time for the approval/disapproval based upon the earliest date requested. All leave requests submitted for consideration for the seniority-based periods must be submitted prior to the 10th day. Requests for leave, other than medical and bereavement leave, submitted any time after the 10th day and prior to the start of a shift shall be acted upon on a first received basis, and approval shall be dependent upon the manpower requirements of the official schedules. As it pertains to leave, as priority leave cannot be disapproved solely for manpower reasons, priority leave shall be acted upon and resolved before consideration of any other leave requests. After all priority leave requests have been resolved, for any particular period, other leaves shall be acted upon, based upon availability of leave.

Any change of the official Monthly Schedule, which includes days of work, shift assignments, regularly scheduled days off, and any approved leave time, must be made to the posted Daily Schedule. In addition, all changes made by the Township shall be provided to the affected employee(s), in writing, through email and/or dated memorandum placed in the employee's(s) mailbox as soon as practically possible. In addition, the supervisor of an employee whose schedule has been changed shall be provided with a copy of the email and/or written notice and shall make reasonable attempts to ensure that the employee is made aware of the change.

Should a schedule change be required by the Township and provide the employee(s) with less than ten (10) calendar day notice from the date of the notification email or memorandum, compensation shall be provided at the overtime rate of pay for all hours worked in accordance with the changed schedule. However, work performed in accordance with schedule changes that are required due to events outside the control of the Township (e.g., the

cancellation of training and court dates, emergency situations, etc.), and schedule changes that are mutually agreed to by the affected employee(s) and the Township shall be compensated at the salary rate of pay.

A projected eleven (11) month schedule shall be maintained by the Township and made available to employees upon request. The projected schedule shall begin with the month immediately following that contained on the official Monthly Schedule, and when the projected and official schedules are combined, a full twelve (12) month period shall be represented. The projected schedule shall be tentative in nature and shall include days of work, shift assignments, regularly scheduled days off, and any approved leave time.

All scheduled leave shall be used at standard increments of four (4) or more hours. Use of leave in hourly segments (1, 2, or 3) may be permitted when requested during the shift and with approval contingent upon minimum manpower requirements.

The procedure for scheduling leave shall be as follows:

Any request for leave is not considered officially approved until the requesting officer has received a signed copy of the specific Leave request, executed by a Division Commander; or in some circumstances, a supervisor. The circumstances in which a supervisor can officially approve leave shall be specified by policy.

ARTICLE 20 TWELVE HOUR SHIFTS

A shift of work shall be classified as twelve (12) consecutive hours. For employees working a 12-hour shift overtime shall constitute time worked in excess of 12 hours. Except in emergency situations, employees shall not be permitted to work in excess of 16 consecutive hours. For the purpose of 12-hour shifts, all leave shall be converted to and referenced by "hours" not "days." No employee shall receive an increase or reduction in leave through the conversion of days to hours. The exception of this provision shall be Death/Bereavement Leave (Article V), which shall remain a day of leave for all employees, no matter if the employee is working an 8-hour or 12-hour schedule. Employees working a 12-hour shift on a holiday shall receive overtime for all hours worked and shall receive an additional eight (8) holiday hours to be used per the collective bargaining agreement.

Employees assigned to a 12-hour shift shall be scheduled to work only 80-hours in a 14-day cycle, including time credited for, and not including earned overtime. Mathematically, 12-hour shifts in 14-day cycle total 84 hours. "Kelly Time" occurs when the Township schedules an employee not to work part of a 12-hour shift to ensure that the employee works only 80 hours during a pay period. At its discretion, the Township shall schedule "Kelly Time" for employees.

ARTICLE 21 LEAVE OF ABSENCE

Upon written application to the Township Manager, each employee shall be granted a leave of absence from his employment with the Lower Paxton Township Police Department for a period of three (3) months. Probationary employees shall be denied leaves of absence.

In addition, upon written application to the Township Manager, each employee may be granted a leave of absence from his employment according to the following:

- 1) An employee who has completed two (2) years of continuous service with the Township may be granted a six (6) month leave of absence.

- 2) An employee who has completed five (5) years of continuous service with the Township may be granted a twelve (12) month leave of absence.

The leave of absence shall be without pay and there shall be no allowance or payment for other types of leave, leave accumulation, or longevity. In addition, the period of time spent on leave of absence shall not be used in the calculation of an employee's seniority or length of employment service. If an employee wishes to continue to participate in the medical, health, life, and disability insurance plans while on a leave of absence, he/she shall be responsible for the cost of such benefits. In the case where the employee is eligible to receive payment for accumulated sick time, vacation, etc., the payment shall be withheld until such time as the employee notifies the Township in writing that he desires to end the leave of absence and terminate employment with the Township.

ARTICLE 22

RANK AND REPLACEMENT

For the purpose of seniority, leave, callouts, and scheduling, rank within the Lower Paxton Township Police Department will be as follows: Sergeant, Corporal and PFC.

Should a vacancy occur in the ranks of PFC, Corporal, or Sergeant, the Township shall determine if it will fill said vacancy or abolish the position within sixty (60) days from the date that the vacancy occurs. Should the Township determine that it will maintain said position, it will then proceed to fill the vacancy in accordance with its personnel policies.

The provisions of this Article shall not apply in situations where a temporary vacancy has occurred due to an approved leave.

ARTICLE 23

SECONDARY EMPLOYMENT

Lower Paxton Township shall have the right to regulate secondary employment activities of employees in accordance with policies and procedures mutually agreed upon by labor and management. Secondary employment shall include extra duty police work performed by employees for a third party through an agreement between the third party and the Township, and off-duty non-police work performed by employees for a third party that possesses no association with the Township. The policies and procedures shall not unduly limit the ability of employees to engage in secondary employment.

On or before the 1st day of January of each year the Township and police negotiating committees shall meet and mutually agree to the rate of payment for extra duty police work provided by employees to third parties through agreement with the Township. In special circumstances, the Public Safety Director or his designees may set a secondary employment rate, which is higher than the prevailing secondary employment rate. Payments made to employees for extra duty police work shall not be included as salary for the purpose of computing employee pension benefits.

ARTICLE 24

NON-DISCRIMINATION

Both the Township and the Police Bargaining Unit agree not to discriminate against any employee on the basis of race, creed, color, sex, marital status, age, national origin, union membership, political affiliation, or non-job-related handicap or disability

**ARTICLE 25
WORKERS' COMPENSATION**

The Township may establish a list of designated health care providers for treatment of work-related injuries that qualify for benefits under the PA Workers' Compensation Act and/or the Pennsylvania Heart and Lung Act. When this list is posted, employees injured on the job shall seek treatment for work-related injuries or illnesses with one of the designated providers for 90 days from the date to the first visit. The Township shall develop and distribute to employees detailed procedures to be followed as they seek treatment in accordance with the designated providers.

**ARTICLE 26
TERMINATION**

This Agreement shall be effective January 1, 2023 and shall continue in full force and effect up to and including December 31, 2026. It shall automatically be renewed from year to year thereafter, unless either party notifies the other, in writing, by such time as would permit the parties to comply with the collective bargaining schedule established under Pennsylvania Act 111 of 1968.

SIGNATURE

The parties hereto through their duly authorized officers or representatives and intending to be legally bound, hereby have hereunder set their hands and seals this ___th day of September 2022.

**POLICE BARGAINING UNIT
NEGOTIATION COMMITTEE:**

**LOWER PAXTON TOWNSHIP BOARD OF
SUPERVISORS:**

President

Chairman

Vice-President

Vice-Chairman

Appendix A

	2023 Salary	2023 Hourly Rate	2024 Salary	2024 Hourly Rate	2025 Salary	2025 Hourly Rate	2026 Salary	2026 Hourly Rate
New Hire w/o Act 120	44,304.00	21.30	45,864.00	22.05	47,465.60	22.82	49,129.60	23.62
FTO Training Period	50,835.20	24.44	52,624.00	25.30	54,475.20	26.19	56,388.80	27.11
Solo Officer Probationary Period	58,052.80	27.91	60,091.20	28.89	62,192.00	29.90	64,376.00	30.95
Police Officer After 1 Year (after Probationary Period)	66,601.60	32.02	68,931.20	33.14	71,344.00	34.30	73,840.00	35.50
Police Officer After 2 Years	74,900.80	36.01	77,521.60	37.27	80,225.60	38.57	83,033.60	39.92
Police Officer After 3 Years	81,868.80	39.36	84,739.20	40.74	87,713.60	42.17	90,792.00	43.65
Police Officer After 4 Years	87,942.40	42.28	91,020.80	43.76	94,203.20	45.29	97,510.40	46.88
Police Officer After 5 Years	95,846.40	46.08	99,195.20	47.69	102,668.80	49.36	106,267.20	51.09

Police Officer After 10 Years	98,321.60	47.27	101,753.60	48.92	105,310.40	50.63	108,992.00	52.40
Police Officer After 15 Years	100,713.60	48.42	104,228.80	50.11	107,868.80	51.86	111,654.40	53.68
Corporal Upon Promotion	104,083.20	50.04	107,723.20	51.79	111,488.00	53.60	115,398.40	55.48
Sergeant Upon Promotion	109,782.40	52.78	113,630.40	54.63	117,603.20	56.54	121,721.60	58.52